

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

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ERIC PRUIETT,

Plaintiffs,

**VERIFIED COMPLAINT
AND DEMAND FOR
A JURY TRIAL**

-against-

**THE CITY OF NEW YORK,
N.Y.C. POLICE OFFICER
SGT, DAVID REILLY, SHIELD # 4245
AND N.Y.C POLICE OFFICER JEFFREY
MILLENBACH, SHIELD # 2368, EACH
SUED INDIVIDUALLY AND IN
HIS OFFICIAL CAPACITY,**

Defendants.

-----X

1. This is an action for compensatory and punitive damages for violation of Plaintiff's rights under the Fourth, Fifth Amendments and Fourteenth Amendment to the Constitution of the U.S.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983. Jurisdiction is founded upon 28 U.S.C. § 1343. Plaintiff further invokes the pendent jurisdiction of this Court to hear and decide claims arising under state law pursuant to 28 U.S.C. § 1367. Venue is proper in this district under 28 U.S.C. § 1391(b) in that all claims arose in this district.

PARTIES

3. Plaintiff is a resident of New York, New York.

4. At all times hereinafter mentioned, the Defendant Police Officers were employees of the New York City Police Department (HEREINAFTER REFERRED TO AS "N.Y.P.D.").

5. At all times the defendant officers were acting within the scope and authority of their employment. They are being sued individually and in their official capacity as New York City Police Officers.

6. The Defendant CITY OF NEW YORK, (HEREINAFTER REFERRED TO AS "City"), was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and as such maintained the New York City Police Department and employed the individual Defendants sued herein.

7. That upon information and belief the City was responsible for the training of its police officers.

8. That at all times herein the defendant, City, was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and/or employees of the N.Y.P.D.

9. That at all times mentioned herein the Defendant, City, knew or should have known of the discriminatory nature, bad judgment, and unlawful propensities of the officer involved in the violation of civil rights of the Plaintiff.

FACTS

10. In the early morning hours of November 1, 2009, plaintiff and his girlfriend were on street near the intersection of Essex and Rivington Streets, in Manhattan.

11. At approximately 2:00 a.m., the two of them were involved in an verbal argument when a woman, a stranger to both of them, intervened and started pushing and screaming at plaintiff.

12. At that point, two undercover police officers approached, but did not identify themselves as police officers. One asked, "What is going on here?"

13. Plaintiff backed away saying, "I can't believe what is happening."

14. Then, without any warning an officer pepper sprayed plaintiff in the face, and tried to grab plaintiff.

15. Plaintiff put his hands up to protect his eyes, at which point the officer punched plaintiff in the face.

16. Unaware they were police officers, Plaintiff tried to push them away. They punched and sprayed him again.

17. Frightened, plaintiff pushed them off of him and ran down the street. As he ran, he heard the officer say, "I'm gonna kill you."

18. Plaintiff ran down Essex Street onto Delancey, then up Clinton.

19. At the corner of Rivington and Clinton, a police van cut him off.

20. Plaintiff was arrested and accused of assaulting a police officer and resisting arrest.

21. Plaintiff was not offered medical attention for his injuries while in police custody.

22. Plaintiffs spent approximately 24 hours in custody before being

released at arraignment.

23. Shortly after his release, plaintiff went to the hospital for treatment.

24. On or about September 30, 2010, all charges were dismissed against plaintiff.

25. Defendant City of New York has pursued a policy and custom of deliberate indifference to the rights of persons in its domain, including the Plaintiffs, in its procedures for supervising and removing, when appropriate, unstable and violent / incompetent police officers from their duties, including but not limited to the fact that Defendants City and/or N.Y.P.D. knew of the individual Defendant's tendencies to make unlawful arrests, unlawful seizures, and otherwise commit unlawful acts, but took no steps to correct or prevent the exercise of such tendencies.

26. Defendant City knew or should have known prior to this date of the perpetration of unlawful arrests and other unlawful acts by the defendants were occurring, in that, upon and information and belief, there were prior reports of such unlawful conduct by these officers.

27. Defendant City and N.Y.P.D., among other deficiencies, failed to institute a bona fide procedure in which Defendant City and/or N.Y.P.D. investigated the unlawful acts of Defendants or properly investigated reports of their alleged misconduct.

**FOR A FIRST CAUSE OF ACTION
FOR VIOLATION OF CIVIL RIGHTS**

(FALSE ARREST)

28. Plaintiff reiterates and realleges the facts stated in the preceding paragraphs as if stated fully herein.

29. As a result of their actions. Defendants, under "color of law", deprived plaintiff of his right to freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983.

30. Defendant subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard for whether Plaintiff's rights would be violated by his actions.

31. As a direct and proximate result of the acts of Defendants, Plaintiff suffered physical injuries, endured great pain and mental suffering, and was deprived of his physical liberty.

FOR A SECOND CAUSE OF ACTION
(EXCESSIVE FORCE)

32. Plaintiff reiterates and realleges the facts stated in paragraphs 1-31 as if stated fully herein.

33. As a result of their actions, Defendants, acting under "Color of law", deprived Plaintiff of his right to freedom from the use of excessive force without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983.

34. Defendants subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard for whether Plaintiff's rights would be violated by his actions.

35. These Defendant officers either actively participated in the

excessive force or were present and improperly failed to intervene to prevent other officers from using excessive force although they were in a position to do so.

36. As a result of the aforesaid occurrence, Plaintiff suffered the damages and injuries aforesaid. All Defendants are liable for said damage and injuries.

**THIRD CAUSE OF ACTION
FOR VIOLATION OF CIVIL RIGHTS
(MONELL VIOLATION)**

37. Plaintiff reiterates and realleges the facts stated in the preceding paragraphs as if stated fully herein.

38. Defendant City and N.Y.P.D., through The N.Y.C. Police Commissioner, as a municipal policymaker, in the hiring, training and supervision of the Defendant officers, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain, and Plaintiffs, violating Plaintiffs' rights to freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983.

39. As a direct and proximate result of the aforementioned policy and custom of deliberate indifference of Defendants City and N.Y.P.D., Defendant officers committed the unlawful acts referred to above. Thus, Defendant City is liable for Plaintiffs injuries.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays that this Court:

1. Enter a judgment that defendants, by their actions, violated Plaintiffs' rights under state law, and violated Plaintiffs rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and violated Plaintiffs rights under State law; and,

2. Enter a judgment, jointly and severally, against Defendants, and The City of New York for compensatory damages in the amount of FIVE HUNDRED THOUSAND (\$500,000.00) Dollars; and,

3. Enter a judgment, jointly and severally against the Defendant officer and The City of New York for punitive damages in the amount of ONE MILLION (\$1,000,000.00) Dollars; and,

4. Enter an Order:

a) Awarding plaintiff's reasonable attorney's fees and litigation expenses pursuant to 42 U.S.C. § 1988;

b) Granting such other and further relief which to the Court seems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff hereby demands a trial by jury.

Dated: New York, New York
March 10, 2011

STEVEN A. HOFFNER, ESQ.

Attorney for the Plaintiff
325 Broadway, Suite 505
New York, New York 10007
(212) 941-8330
(SH-0585)

VERIFICATION

STEVEN A. HOFFNER, an attorney admitted to practice in the Courts of the State of New York states:

That the affirmant is the attorney of record for the plaintiff in the within action.

That the affirmant has read the Answer in this case and knows the contents thereof.

That the same is true as to affirmant's knowledge, except as to matters therein alleged to be on information and belief, and as to those matters affirmant believes them to be true.

That the reason this verification is made by affirmant is because the plaintiff does not reside in the county wherein affirmant maintains his office.

That the grounds of my belief as to all matters not stated upon my own knowledge are as follows:

investigation, client conferences, and review of the file.

The undersigned affirms that the following statements are true, under the penalties of perjury.

Dated: New York, New York
March 10, 2011

STEVEN A. HOFFNER, Esq.

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